

Constitutional Foundations

Constitutional development 1773–1947 · Making of the Constitution · Sources · Salient features · Preamble · Parts and Schedules · Union and its territory · Citizenship · Emergency provisions · Amendment and majorities · Basic structure

1 · CONSTITUTIONAL DEVELOPMENT, 1773–1947

A. Company Rule, 1773–1858

Regulating Act, 1773

- First step by the British Parliament to **regulate** the affairs of the East India Company; first recognition of its political functions.
- Governor of Bengal designated **Governor-General of Bengal** — first was **Warren Hastings**; an **Executive Council of four** members created.
- Governors of **Bombay and Madras made subordinate** to the Governor-General of Bengal.
- Provided for a **Supreme Court at Calcutta (established 1774)** — one Chief Justice and three other judges.
- Barred Company servants from **private trade** and from accepting presents or bribes.
- Court of Directors to report on revenue, civil and military affairs to the British Government.

Amending Act of 1781 (Act of Settlement)

- Governor-General-in-Council **exempted from the Supreme Court's jurisdiction** for acts done in official capacity; Company servants likewise.
- **Revenue matters** excluded from the Supreme Court's jurisdiction.
- Supreme Court to have jurisdiction over all inhabitants of Calcutta; to apply personal law of the defendant.
- Appeals from Provincial Courts to lie to the Governor-General-in-Council.

Pitt's India Act, 1784

- Separated the Company's **commercial** and **political** functions.
- **Court of Directors** for commerce; a new **Board of Control** for political affairs — the system of **Double Government**.
- Board of Control empowered to supervise and direct all civil, military and revenue operations.
- Company's territories called "**British possessions in India**" for the first time.

Act of 1786

- **Lord Cornwallis** given power to **override his Council**; also made **Commander-in-Chief**.

Charter Act, 1793

- Extended the Company's **trade monopoly for 20 more years**.
- Override power over the Council extended to all future Governors-General and Governors.
- Commander-in-Chief not to be a member of the Council unless so appointed.
- Board of Control members to be paid **out of Indian revenues**.

Charter Act, 1813

- **Ended the Company's trade monopoly — except for tea and trade with China**.
- Asserted the **sovereignty of the British Crown** over Company territories.
- Permitted **Christian missionaries** to preach in India.
- **One lakh rupees** a year set aside for the revival of literature and the encouragement of the sciences among Indians.

Charter Act, 1833 — the final step of centralisation

- Governor-General of Bengal → **Governor-General of India**, with all civil and military powers; first was **Lord William Bentinck**.
- Governments of Bombay and Madras **deprived of legislative powers** — exclusive legislative power vested in the Governor-General of India.
- Company's **commercial activities ended entirely**; it became a purely administrative body holding territory "in trust for His Majesty".
- Attempted to introduce **open competition** for the selection of civil servants — negated by the Court of Directors.
- First Act to prohibit disqualification of an Indian on grounds of **religion, place of birth, descent or colour**.

Charter Act, 1853 — the last of the Charter Acts

- **Separated the legislative and executive functions** of the Governor-General's Council for the first time.
- Created a separate **Indian (Central) Legislative Council** with six new legislative members — four appointed by the local governments of **Bengal, Madras, Bombay and Agra**: the first, indirect, element of **local representation**.
- Introduced **open competition** for the civil service, thrown open to Indians — the **Macaulay Committee** was appointed in 1854.
- Company allowed to retain possession **without specifying any period** — a clear signal that its rule could be ended at any time.

B. Crown Rule, 1858-1947

Government of India Act, 1858 — the Act for the Good Government of India

- **Abolished the East India Company**; powers of government, territories and revenues transferred to the **British Crown**.
- Governor-General of India redesignated **Viceroy** — first was **Lord Canning**.
- Abolished the **Board of Control** and the **Court of Directors** — ended the system of double government.
- Created the office of **Secretary of State for India** — a member of the British Cabinet, responsible to Parliament, assisted by a **Council of India** of 15 members (advisory).
- Secretary of State-in-Council constituted a **body corporate**, able to sue and be sued.

Indian Councils Act, 1861 — beginning of representative institutions

- Viceroy to **nominate Indians as non-official members** of his expanded Council. Lord Canning nominated three in 1862 — the **Raja of Benaras, the Maharaja of Patiala and Sir Dinkar Rao**.
- **Decentralisation begins** — legislative powers **restored** to the Bombay and Madras Presidencies.
- New legislative councils provided for **Bengal (1862), North-Western Provinces (1866) and Punjab (1897)**.
- Gave statutory recognition to the **portfolio system** introduced by Lord Canning in 1859.
- Viceroy empowered to issue **ordinances**, valid for six months, during an emergency.

Indian Councils Act, 1892

- Increased the number of **non-official members** in the central and provincial legislative councils.
- Councils given the power to **discuss the budget** and to **address questions to the executive**.
- Nomination of some non-official members on the **recommendation of district boards, municipalities, universities, trade associations and chambers of commerce** — indirect election in substance, though the word "election" was never used.

Indian Councils Act, 1909 — Morley-Minto Reforms

- Size of the legislative councils considerably increased — the Central Legislative Council from **16 to 60** members.
- Retained the **official majority at the Centre**, but allowed provincial legislative councils a **non-official majority**.
- Enlarged the deliberative functions — supplementary questions, resolutions on the budget.
- For the first time provided for the **association of Indians with the executive councils** — **Satyendra Prasad Sinha** became the first Indian to join the Viceroy's Executive Council, as Law Member.
- Introduced **separate electorates for Muslims** — legalised communalism. **Lord Minto is called the Father of Communal Electorates**.

Government of India Act, 1919 — Montagu-Chelmsford Reforms

- Separated **central and provincial subjects**; each authorised to raise its own revenues; provincial and central budgets separated.
- **Dyarchy in the provinces** — provincial subjects split into **transferred** (administered by the Governor with ministers responsible to the legislature) and **reserved** (administered by the Governor with his executive council, not responsible to the legislature).
- Introduced **bicameralism** and **direct election** at the Centre — a **Legislative Assembly** (lower house) and a **Council of State** (upper house).
- Required **three of the six** members of the Viceroy's Executive Council, other than the Commander-in-Chief, to be Indian.
- Extended **communal representation** to Sikhs, Indian Christians, Anglo-Indians and Europeans.
- Franchise granted to a limited number on the basis of property, tax or education.
- Created the office of **High Commissioner for India in London**.
- Provided for a **Public Service Commission** — set up in **1926**.
- Provided for a **statutory commission after ten years** to review its working — the Simon Commission, appointed 1927.

Government of India Act, 1935 — the longest Act and the immediate ancestor of the Constitution

- Provided for an **All-India Federation** of provinces and princely states — **it never came into being**, as the princely states did not join.
- Divided powers into three lists — **Federal List (59 items), Provincial List (54 items), Concurrent List (36 items); residuary powers vested in the Viceroy.**
- **Abolished dyarchy in the provinces** and introduced **provincial autonomy** — provinces became autonomous units administering their own subjects.
- Provided for **dyarchy at the Centre** — **never implemented.**
- Introduced **bicameralism in six of the eleven provinces** — Bengal, Bombay, Madras, Bihar, Assam and the United Provinces.
- Extended separate electorates further — to **depressed classes, women and labour.**
- **Abolished the Council of India** established by the Act of 1858.
- Provided for a **Federal Court** — set up in **1937**; a **Reserve Bank of India** — set up in **1935**; and a **Federal Public Service Commission**, Provincial PSCs and Joint PSCs.

Indian Independence Act, 1947

- Ended British rule on **15 August 1947** and created two independent dominions — **India and Pakistan** — free to leave the Commonwealth.
- **Abolished the office of the Secretary of State for India.**
- Governor-General and provincial Governors made **constitutional heads**, acting on the advice of ministers.
- Granted **full legislative sovereignty** to the Constituent Assembly, which also functioned as the dominion legislature.
- **Lapse of British paramountcy** over the princely states, which were free to accede to either dominion or remain independent.
- Dropped the title "**Emperor of India**" from the royal style of the British Crown.

2 · MAKING OF THE CONSTITUTION

Constituted under	Cabinet Mission Plan, 1946 ; indirect election by provincial assemblies, July 1946. The demand for a Constituent Assembly was first raised by M.N. Roy in 1934 .
Strength	389 originally (296 British India + 93 princely states) → 299 after Partition (229 provinces + 70 princely states)
First sitting	9 December 1946 — Dr. Sachchidananda Sinha , the eldest member, as temporary President. Muslim League boycotted.
Permanent President	Dr. Rajendra Prasad , elected 11 December 1946 . Vice-President: H.C. Mukherjee.
Objectives Resolution	Moved by Jawaharlal Nehru on 13 December 1946 ; adopted 22 January 1947 . Its philosophy became the Preamble.
Constitutional Adviser	Sir B.N. Rau
Drafting Committee	Appointed 29 August 1947 ; Chairman Dr. B.R. Ambedkar ; seven members
Adopted	26 November 1949 — Preamble, 395 Articles, 8 Schedules
Signed	24 January 1950 , by 284 members; the national anthem and national song were adopted the same day
Commenced	26 January 1950 — chosen to commemorate the <i>Purna Swaraj</i> declaration of 26 January 1930
Time taken	2 years, 11 months, 18 days · 11 sessions · 165 sitting days · 114 days on the draft

Committees and their chairmen

Union Powers Committee	Nehru
Union Constitution Committee	Nehru
States Committee	Nehru
Provincial Constitution Committee	Patel
Advisory Committee on Fundamental Rights, Minorities, Tribal and Excluded Areas	Patel
↳ Fundamental Rights sub-committee	J.B. Kripalani
↳ Minorities sub-committee	H.C. Mukherjee
↳ NE Frontier Tribal Areas and Assam	Gopinath Bardoloi
↳ Excluded Areas other than Assam	A.V. Thakkar
Steering Committee	Rajendra Prasad
Rules of Procedure Committee	Rajendra Prasad
Drafting Committee	Ambedkar
Flag Committee	Rajendra Prasad
Order of Business Committee	K.M. Munshi
Credentials Committee	Alladi Krishnaswamy Ayyar

The Drafting Committee — seven members

- **Dr. B.R. Ambedkar** — Chairman
- N. Gopalaswami Ayyangar
- Alladi Krishnaswamy Ayyar
- Dr. K.M. Munshi
- Syed Mohammad Saadulla
- **N. Madhava Rau** — replaced B.L. Mitter, who resigned on health grounds
- **T.T. Krishnamachari** — replaced D.P. Khaitan, who died in 1948

Other functionaries

- **S.N. Mukherjee** — Chief Draftsman
- **H.V.R. Iyengar** — Secretary to the Assembly
- **Prem Behari Narain Raizada** — calligrapher of the original manuscript
- **Nandalal Bose** — decoration and illustration

7,635

AMENDMENTS MOVED

2,473

AMENDMENTS DISPOSED OF

3 · SOURCES OF THE CONSTITUTION

SOURCE	PROVISIONS BORROWED
Government of India Act, 1935	Federal scheme · office of Governor · judiciary · Public Service Commissions · emergency provisions · administrative details (<i>the single largest source</i>)
United Kingdom	Parliamentary government · rule of law · legislative procedure · single citizenship · cabinet system · prerogative writs · parliamentary privileges · bicameralism
United States	Fundamental Rights · independence of the judiciary · judicial review · impeachment of the President · removal of Supreme Court and High Court judges · office of Vice-President
Ireland	Directive Principles of State Policy · nomination of members to the Rajya Sabha · method of election of the President
Canada	

	Federation with a strong Centre · residuary powers with the Centre · appointment of state Governors by the Centre · advisory jurisdiction of the Supreme Court
Australia	Concurrent List · freedom of trade, commerce and intercourse · joint sitting of the two Houses
Weimar Germany	Suspension of Fundamental Rights during an emergency
Erstwhile USSR	Fundamental Duties · the ideal of justice — social, economic and political — in the Preamble
France	Republic · the ideals of liberty, equality and fraternity in the Preamble
South Africa	Procedure for amendment of the Constitution · election of Rajya Sabha members
Japan	Procedure established by law

4 · SALIENT FEATURES OF THE CONSTITUTION

Longest written constitution	Originally 395 Articles, 22 Parts, 8 Schedules ; presently about 470 Articles, 25 Parts, 12 Schedules . Length owes to the size and diversity of the country, a single constitution for Centre and states, the influence of the 1935 Act, and the inclusion of administrative detail.
Drawn from various sources	Structural part largely from the Act of 1935; philosophical part from American and Irish sources; political part from the British model.
Blend of rigidity and flexibility	Three amendment routes — simple majority, special majority, and special majority with state ratification.
Federal system with unitary bias	Federal features: two governments, division of powers, written and supreme constitution, rigidity, independent judiciary, bicameralism. Unitary features: strong Centre, single constitution, single citizenship, integrated judiciary, all-India services, appointment of Governors by the Centre, emergency provisions, flexibility of amendment.
Parliamentary government	Nominal and real executives · majority party rule · collective responsibility to the legislature · ministers sitting in the legislature · leadership of the Prime Minister · dissolution of the lower house. The Constitution establishes a parliamentary system at both levels, not the American presidential model.
Parliamentary sovereignty with judicial supremacy	A synthesis — the Supreme Court can declare parliamentary laws unconstitutional through judicial review; Parliament can amend most of the Constitution through its constituent power.
Integrated and independent judiciary	A single system with the Supreme Court at the apex, High Courts below and subordinate courts under them, enforcing both central and state laws.
Fundamental Rights	Justiciable rights in Part III, enforceable through the courts, but not absolute — subject to reasonable restrictions.
Directive Principles	Non-justiciable ideals in Part IV directed at the state, aimed at a welfare state.
Fundamental Duties	Added by the 42nd Amendment on the recommendation of the Swaran Singh Committee; non-justiciable.
Indian secularism	No state religion; equal respect for all religions rather than a wall of separation.
Universal adult franchise	Every citizen of 18 years and above entitled to vote without any qualification of property, tax, education or sex.
Single citizenship	Only citizenship of India — no separate state citizenship, unlike the United States.
Independent bodies	Election Commission, Comptroller and Auditor-General, Union and State Public Service Commissions, Finance Commission and others, given security of tenure and service conditions.
Emergency provisions	Enable the Centre to meet extraordinary situations; the federal structure converts to a unitary one without a formal amendment.
Three-tier government	Panchayats and municipalities added as a third tier by the 73rd and 74th Amendments.
Cooperative societies	Right to form cooperative societies made a Fundamental Right, with a Directive Principle for their promotion.

5 · THE PREAMBLE

Four components

Source of authority	The people of India
Nature of the state	Sovereign · Socialist · Secular · Democratic · Republic
Objectives	Justice · Liberty · Equality · Fraternity
Date of adoption	26 November 1949

The objectives, unpacked

Justice	social, economic, political
Liberty	of thought, expression, belief, faith and worship
Equality	of status and of opportunity
Fraternity	

Key terms

- **Sovereign** — India is neither a dependency nor a dominion; free in internal and external affairs. Membership of the Commonwealth and the United Nations does not limit sovereignty.
- **Socialist** — added by the 42nd Amendment; democratic socialism, a mixed economy, not the communist variety.
- **Secular** — added by the 42nd Amendment; no state religion, equal respect for all faiths.
- **Democratic** — representative, parliamentary democracy resting on universal adult franchise, periodic elections and rule of law; covers social and economic as well as political democracy.

assuring the dignity of the individual and the unity and integrity of the Nation

- **Republic** — the head of state is **elected**, not hereditary; office open to every citizen.

Settled position

- **Part of the Constitution**, as finally held in the Kesavananda Bharati case; the earlier Berubari opinion had held otherwise.
- **Not enforceable** in a court of law.
- **Neither a source of power** for the legislature **nor a limitation** upon its powers.
- **Amendable**, but without damaging the basic structure.
- Amended **only once** — the **42nd Amendment, 1976**, adding **Socialist, Secular and Integrity**.

6 • PARTS AND SCHEDULES

395 ARTICLES ORIGINALLY	22 PARTS ORIGINALLY	8 SCHEDULES ORIGINALLY	~470 ARTICLES NOW	25 PARTS NOW	12 SCHEDULES NOW
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Parts and their subjects

I	The Union and its territory (Art 1-4)
II	Citizenship (5-11)
III	Fundamental Rights (12-35)
IV	Directive Principles (36-51)
IV-A	Fundamental Duties (51A)
V	The Union Government (52-151)
VI	The State Governments (152-237)
VII	<i>Repealed by the 7th Amendment, 1956</i>
VIII	Union Territories (239-242)
IX	Panchayats (243-243-O)
IX-A	Municipalities (243-P-243-ZG)
IX-B	Cooperative societies (243-ZH-243-ZT)
X	Scheduled and Tribal Areas (244)
XI	Centre-State relations (245-263)
XII	Finance, property, contracts and suits (264-300A)
XIII	Trade, commerce and intercourse (301-307)
XIV	Services under the Union and States (308-323)
XIV-A	Tribunals (323A-323B)
XV	Elections (324-329A)
XVI	Special provisions for certain classes (330-342)
XVII	Official language (343-351)
XVIII	Emergency provisions (352-360)
XIX	Miscellaneous (361-367)
XX	Amendment of the Constitution (368)
XXI	Temporary, transitional and special provisions (369-392)
XXII	Short title, commencement, authoritative text and repeals (393-395)

The twelve Schedules

First	States and Union Territories and their territories
Second	Emoluments, allowances and privileges of the President, Governors, Speakers, judges and the CAG
Third	Forms of oaths and affirmations for ministers, legislators, judges and the CAG — the oaths of the President and Governor are in Articles 60 and 159, not here
Fourth	Allocation of seats in the Rajya Sabha
Fifth	Administration and control of Scheduled Areas and Scheduled Tribes
Sixth	Administration of tribal areas in Assam, Meghalaya, Tripura and Mizoram
Seventh	Union, State and Concurrent Lists
Eighth	Languages — 22 recognised; originally 14
Ninth	Acts and regulations protected from challenge on the ground of violation of Fundamental Rights; added by the 1st Amendment, 1951 . Laws placed here after 24 April 1973 remain open to judicial review.
Tenth	Anti-defection provisions; added by the 52nd Amendment, 1985
Eleventh	Powers and responsibilities of Panchayats — 29 subjects ; added by the 73rd Amendment, 1992
Twelfth	Powers and responsibilities of Municipalities — 18 subjects ; added by the 74th Amendment, 1992

Parts IV-A, IX-A, IX-B and XIV-A were inserted after commencement; Part VII was repealed.

7 • THE UNION AND ITS TERRITORY

Article 1	"India, that is Bharat, shall be a Union of States." Territory of India comprises (i) territories of the states, (ii) Union Territories, and (iii) territories that may be acquired. "Union" was preferred to "Federation" because the Indian federation is not the result of an agreement among the states, and no state has the right to secede .
Article 2	Parliament may admit into the Union, or establish, new states on such terms as it thinks fit. This relates to states not part of India .
Article 3	Parliament may form a new state by separation of territory or by uniting territories; increase or diminish the area of any state; alter the boundaries or the name of any state. This relates to states already part of India — the reorganisation of internal territory.
Article 4	Laws made under Articles 2 and 3 are not deemed amendments under Article 368 — they are passed by simple majority and by the ordinary legislative process.

TWO CONDITIONS ATTACHED TO AN ARTICLE 3 BILL

- It can be introduced in either House **only on the prior recommendation of the President**.
- Before recommending, the President must refer the bill to the legislature of the state concerned for its views within a specified period. The President is not bound by those views, and need not make a fresh reference each time the bill is amended. Explanation I to Article 3: 'State' includes a Union territory in clauses (a) to (e) but not in the proviso — a bill affecting only a Union territory needs no reference.

Consequently, **Parliament can alter the area, boundaries or name of any state without its consent** — India is described as "an indestructible Union of destructible states".

Reorganisation of states — the sequence

Dhar Commission, 1948	Recommended reorganisation on the basis of administrative convenience rather than language.
JVP Committee, 1948	Nehru, Patel and Pattabhi Sitaramayya — rejected language as the basis of reorganisation.
Andhra, 1953	The first state created on a linguistic basis , carved out of Madras.
Fazl Ali Commission, 1953	The States Reorganisation Commission — Fazl Ali, K.M. Panikkar and H.N. Kunzru. Accepted language as a basis but rejected "one language one state".
1956	States Reorganisation Act and the 7th Amendment — 14 states and 6 Union Territories ; the four-fold Part A, B, C and D classification abolished.
Present position	28 states and 8 Union Territories.

DISTINCTION WORTH HOLDING

Cession of Indian territory to a foreign state cannot be done under Article 3 — it requires a **constitutional amendment under Article 368**. But the mere **settlement of a boundary dispute** with a foreign country does not require an amendment; it can be done by executive action.

8 • CITIZENSHIP

Constitutional provisions — Articles 5 to 11

Article 5	Citizenship at the commencement of the Constitution — a person domiciled in India who was born in India, or either of whose parents was born in India, or who had been ordinarily resident in India for not less than five years .
Article 6	Rights of citizenship of persons who migrated from Pakistan to India.
Article 7	Rights of citizenship of persons who migrated to Pakistan and later returned on a permit for resettlement.
Article 8	Rights of citizenship of persons of Indian origin residing outside India .
Article 9	A person voluntarily acquiring the citizenship of a foreign state ceases to be a citizen — no dual citizenship .
Article 10	Continuance of the rights of citizenship, subject to any law made by Parliament.
Article 11	Parliament to regulate the right of citizenship by law — under which the Citizenship Act, 1955 was enacted.

Acquisition — five modes under the Act of 1955

By birth	Born in India — 26 Jan 1950 to 1 Jul 1987 : a citizen irrespective of the parents' nationality. 1 Jul 1987 to 2 Dec 2004 : if either parent was a citizen at the time of birth. On or after 3 Dec 2004 : if both
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Loss — three modes

Renunciation	A voluntary declaration by an adult citizen; the minor children also lose citizenship, but may resume it on attaining eighteen.
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Termination

parents are citizens, or one is a citizen and the other is **not an illegal migrant**. Not available to children of foreign diplomats and enemy aliens.

Automatic, when a citizen **voluntarily acquires** the citizenship of another country. Does not operate during a war in which India is engaged.

By descent	Born outside India — before 10 Dec 1992 : if the father was a citizen at birth. On or after 10 Dec 1992: if either parent was a citizen. On or after 3 Dec 2004 : only if the birth is registered at an Indian consulate within one year .
By registration	Persons of Indian origin ordinarily resident in India for seven years; persons of Indian origin resident outside undivided India; persons married to Indian citizens and ordinarily resident for seven years; minor children of citizens; overseas citizens registered for five years.
By naturalisation	For a person who is not an illegal migrant: renunciation of the other citizenship, good character, knowledge of a language in the Eighth Schedule, and residence in India for twelve months immediately preceding the application plus eleven years in the aggregate in the preceding fourteen years . These conditions may be waived for a person of distinguished service.
By incorporation of territory	Where a new territory becomes part of India, the Government of India specifies the persons who become citizens.

Deprivation A **compulsory** termination by the Central Government — for citizenship obtained by fraud, disloyalty to the Constitution, unlawful trading or communication with an enemy during war, imprisonment of two years within five years of registration or naturalisation, or ordinary residence outside India for seven continuous years.

Single citizenship

- Only **one citizenship — of India**. There is no separate state citizenship, unlike in the United States or Switzerland.
- Exceptions to the uniformity of rights: employment or office reservations by residence under Article 16; special provisions for certain states; restrictions on acquisition of property and settlement in tribal and scheduled areas.

Overseas Citizen of India

- The OCI scheme **does not confer citizenship** and does not amount to dual citizenship.
- An OCI cardholder has **no right to vote**, cannot be a member of a legislature, and cannot hold constitutional posts such as President, Vice-President, or judge of the Supreme Court or a High Court.
- Registration as a citizen is possible after being registered as an OCI cardholder for **five years** and resident in India for the preceding twelve months.

9 • EMERGENCY PROVISIONS

Part XVIII, Articles 352 to 360. Three kinds of emergency.

	NATIONAL EMERGENCY	PRESIDENT'S RULE	FINANCIAL EMERGENCY
Article	352	356 (also 365)	360
Ground	War, external aggression (external emergency) or armed rebellion (internal emergency) — including an imminent danger of these	Failure of the constitutional machinery in a state. Under Article 365, failure to comply with a direction of the Centre.	A threat to the financial stability or credit of India or of any part of its territory
Precondition	Only on the written recommendation of the Cabinet	On a report of the Governor, or otherwise	Satisfaction of the President
Parliamentary approval	Within one month , by special majority in each House	Within two months , by simple majority	Within two months , by simple majority
Duration once approved	Six months , extendable by six months at a time indefinitely , each extension needing a special majority	Six months ; maximum three years . Beyond one year only if a National Emergency is in force in the whole or part of India and the Election Commission certifies that elections cannot be held.	Indefinite — continues until revoked; no further parliamentary approval needed
Revocation	By the President at any time, without parliamentary approval. The Lok Sabha alone can disapprove it by simple majority if one-tenth of its members give notice — a special sitting must be held within fourteen days.	By the President at any time; no parliamentary approval needed	By the President at any time; no parliamentary approval needed
Times declared	Three — 1962 (Chinese aggression), 1971 (war with Pakistan), 1975 (internal disturbance)	Frequently	Never

Effects of a National Emergency

- **Executive** — the Centre may give **executive directions** to a state on any matter; the state government is not suspended, but is brought under complete Central control.
- **Legislative** — Parliament may **make laws on subjects in the State List**. Such laws cease to operate six months after the emergency ends. The state legislature is not suspended.
- **Financial** — the President may **modify the distribution of revenues** between the Centre and the states; such an order operates till the end of the financial year in which the emergency ceases.
- **Term of the legislature** — the life of the Lok Sabha may be extended by **one year at a time**, not extending beyond **six months** after the emergency ceases. The same applies to a state assembly.
- **Article 358** — the **six rights under Article 19 are automatically suspended**. Since the 44th Amendment this operates **only when the emergency is declared on the ground of war or external aggression**, not armed rebellion, and only for laws related to the emergency.
- **Article 359** — the President may by order **suspend the right to move any court** for the enforcement of specified Fundamental Rights. **Articles 20 and 21 can never be suspended** — a safeguard introduced by the 44th Amendment.

Effects of President's Rule

- The President **assumes the functions of the state government** and the powers of the Governor and of any state authority other than the High Court.
- The **state legislature is either suspended or dissolved**; Parliament passes the state legislative bills and the state budget.
- Parliament may **delegate the law-making power** for the state to the President or another authority.
- The President **cannot assume the powers of the High Court** or suspend any provision relating to it.

EFFECTS OF A FINANCIAL EMERGENCY

- The Centre may give **directions to the states** to observe canons of financial propriety.
- A direction to a State under Art. 360(4)(a)(i) may cut salaries and allowances of persons serving that State. Cuts for persons serving the Union — including Judges of the Supreme Court and the High Courts — are a separate presidential power under Art. 360(4)(b).
- All **money bills and other financial bills** passed by a state legislature may be reserved for the President's consideration.

10 · AMENDMENT OF THE CONSTITUTION

ROUTE	MAJORITY REQUIRED	APPLIES TO
Simple majority outside Article 368	Majority of members present and voting in each House	Admission or establishment of new states · alteration of areas, boundaries or names of states · abolition or creation of legislative councils in states · citizenship · salaries and allowances · quorum · rules of procedure · privileges · use of English · number of judges in the Supreme Court · conferment of additional jurisdiction on the Supreme Court · use of official language · elections · Union Territories · the Fifth and Sixth Schedules
Special majority Article 368	Majority of the total membership of each House and a majority of not less than two-thirds of the members present and voting	Fundamental Rights · Directive Principles · all provisions not covered by the other two routes
Special majority with ratification by half the states	Special majority as above, plus ratification by the legislatures of half the states by a simple majority	Election of the President and its manner · extent of the executive power of the Union and the states · the Supreme Court and the High Courts · distribution of legislative powers between the Centre and the states · any of the Lists in the Seventh Schedule · representation of the states in Parliament · Article 368 itself

PROCEDURE — POINTS THAT ARE TESTED DIRECTLY

- An amendment bill may be introduced in **either House**, and by a **private member** as well as a minister; **no prior recommendation of the President** is required.
- It must be passed **separately in each House** — there is **no provision for a joint sitting** in case of disagreement.
- Where state ratification is needed, the states must ratify **before** the bill is presented to the President; there is **no time limit**, and a state cannot withdraw its ratification once given.
- The President **must give assent** — he can neither withhold assent nor return the bill for reconsideration.
- The Constitution can be amended only by Parliament; **state legislatures cannot initiate** an amendment, except a resolution for the abolition or creation of a legislative council.

11 · THE TYPES OF MAJORITIES

MAJORITY	MEANING	WHERE IT APPLIES
Simple majority	More than half of the members present and voting . The commonest majority; used wherever the Constitution does not prescribe another.	Ordinary bills · money bills · financial bills · confidence and no-confidence motions · adjournment, censure and cut motions · vote of thanks · approval of President's Rule and of a Financial Emergency · declaration of a state as a Scheduled Area · creation or abolition of state legislative councils · formation of new states and alteration of boundaries · ratification of a constitutional amendment by a state legislature
Absolute majority	More than half of the total membership of the House.	Not used by the Constitution for any decision on its own. It is the majority relevant to government formation — a party or coalition needs it in the Lok Sabha to form the government.
Effective majority	More than half of the effective strength — the total strength of the House minus vacancies . Expressed in the Constitution as "all the then members".	Removal of the Vice-President — the resolution must be passed by the Rajya Sabha by this majority and then agreed to by the Lok Sabha · removal of the Speaker and Deputy Speaker of the Lok Sabha · removal of the Chairman and Deputy Chairman of the Rajya Sabha · removal of the Speaker and Deputy Speaker of a state assembly and the Chairman and Deputy Chairman of a legislative council
Special majority — type 1 Article 368	Majority of the total membership of the House and not less than two-thirds of the members present and voting . Both limbs must be satisfied.	Amendment of the Constitution · approval of a National Emergency · removal of a judge of the Supreme Court or a High Court · removal of the Chief Election Commissioner and the Comptroller and Auditor-General
Special majority — type 2 Article 249	Two-thirds of the members present and voting — no requirement as to total membership.	A Rajya Sabha resolution empowering Parliament to legislate on a State List subject in the national interest (Article 249) · a Rajya Sabha resolution creating a new All-India Service (Article 312)
	Two-thirds of the total membership of the House — the	

Special majority — type 3 Article 61	most demanding requirement in the Constitution.	Impeachment of the President — the charge must be passed by this majority in the House that frames it, and then by the same majority in the House that investigates it
Special majority with state ratification	Type 1 above, plus ratification by the legislatures of half the states by simple majority.	Amendments touching the federal structure — see the third route in the table above

THE DISTINCTIONS MOST OFTEN CONFUSED

- **Effective majority** subtracts vacancies; **absolute majority** does not. A House of 245 with 5 vacancies needs 121 for an effective majority and 123 for an absolute majority.
- **National Emergency** needs a **special majority**; **President's Rule** and a **Financial Emergency** need only a **simple majority**.
- Removing a **judge** takes a special majority of the Article 368 type. Removing the **Speaker** takes only an effective majority. Removing the **President** takes two-thirds of the total membership.
- Article 249 requires two-thirds of those **present and voting** only — it does not require a majority of the total membership.

12 · THE BASIC STRUCTURE DOCTRINE

- The question is how far Parliament's amending power under Article 368 extends. The **Kesavananda Bharati case (1973)** settled it: Parliament may amend **any part** of the Constitution, **including the Fundamental Rights**, but **cannot alter its basic structure**.
- The doctrine applies to amendments made **on or after 24 April 1973**, the date of that judgment.
- The Constitution nowhere defines the basic structure. It has been built up case by case, and the list is not closed.

Elements recognised as part of the basic structure

Supremacy of the Constitution · sovereign, democratic and republican nature of the polity · secular character · separation of powers between the legislature, executive and judiciary · federal character · unity and integrity of the nation · welfare state and the socio-economic justice objective · **judicial review** · independence of the judiciary · **the rule of law** · harmony and balance between Fundamental Rights and Directive Principles · **free and fair elections** · the principle of equality · **limited power of Parliament to amend the Constitution** · effective access to justice · powers of the Supreme Court under Articles 32, 136, 141 and 142 · parliamentary system of government.

POINTS ON WHICH THE CURRENT POSITION DIFFERS FROM THE OLDER ONE

- The **right to property** is no longer a Fundamental Right. The 44th Amendment, 1978 removed Article 31 and made it a **legal right under Article 300A**.
- The **nomination of Anglo-Indian members** to the Lok Sabha and state assemblies ceased with effect from **25 January 2020** under the 104th Amendment.
- The **women's reservation** introduced by the 106th Amendment, 2023 has been enacted but **is not yet in operation** — it takes effect only after the next census and the delimitation that follows.
- Regarding **cooperative societies**: what stands firmly is the Fundamental Right to form them under **Article 19(1)(c)** and the Directive Principle for their promotion under **Article 43-B**. Part IX-B was held inoperative for societies confined to a single state, for want of ratification by the states, and survives only for multi-state societies.
- The safest figures to hold are the **original** ones — 395 Articles, 22 Parts, 8 Schedules — since the present count of Articles is stated variously depending on how inserted sub-articles are counted.